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IN THE CIRCUIT COURT FOR THE THIRTEENTH JUDICIAL CIRCUIT
IN AND FOR HILLSBOROUGH COUNTY, STATE OF FLORIDA
FAMILY LAW DIVISION

CASE NO.: 24-DR-001150
DIVISION: D

SARAH HANSON,
Petitioner,

and

CHRISTOPHER HANSON,
Respondent.
_____/

COURT PROCEEDING
Thursday, December 19, 2024
12:41 p.m. - 1:05 p.m.

HONORABLE KELLY AYERS
(Via Zoom)
_____/

REPORTED BY:

Nika M. Priestley, Notary Public

State of Florida

STENOGRAPHICALLY REPORTED

COMPUTER-AIDED TRANSCRIPTION

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(WHEREUPON, the court proceeding commenced.)

THE COURT: Madam Court Reporter, we're here on Hanson v. Hanson, 24-DR-1150. We are here on Zoom. Both Mr. and Mrs. Hanson are present along with Mrs. Hanson's lawyer, Mr. Scott Davis, and we were here regarding follow up with respect to discovery. In the meantime, I have made a ruling with respect to the premarital agreement and the separation agreement. It was my ruling -- I don't think I have an order yet, Mr. Davis. I know I just got that today.

MR. DAVIS: I prepared a proposed order the same day I received the Court's ruling. I sent it to Mr. Hanson and he has not yet responded.

THE COURT: All right. Mr. Hanson, I need you to respond to that. Mr. Davis, if you will email that to my judicial assistant, and then, Mr. Hanson, if you will respond to whatever you don't agree with in writing, just in an email, she'll print both of them for me and then I will enter an order.

MR. HANSON: Absolutely, Your Honor. Mr. Davis had gave me five days. I've got so much on my plate right now. I'm not going to be early on too much right now.

THE COURT: All right. Well, you're going to

have it to me tomorrow by close of business, please.

MR. HANSON: Absolutely, Your Honor.

THE COURT: All right. And my ruling, basically, when I looked at it, it was clear to me nobody has asked me to do anything with the premarital agreement or separation agreement. So at this juncture I'm not ruling on them with respect to anything because it's not in front of me, but as far as I'm concerned they're both in full force and effect and that would limit your discovery requests, Mr. Hanson.

MR. HANSON: Your Honor, I just wanted to make sure you're aware that Mrs. Hanson demanded discovery of me that goes beyond what I'm even requesting of her and it feels like their discovery tactics worked and accomplished exactly what they wanted, which, you know, I don't know family law. I don't know what's acceptable and what's not. So, you know, I'm going to have to do some research and try to familiarize myself with that or find another attorney.

THE COURT: Right. And I'm not sure why Mr. Davis did that. He can't tell me because it's privileged. Maybe at the time he thought --

MR. DAVIS: I can.

THE COURT: Go ahead.

MR. DAVIS: Ms. Hanson represented herself for a period of time and she sent the discovery request before she retained me to represent her. I have not sent such a discovery request and Mr. Hanson, in all of his email communications to me, of which there are many and which he likes to make a lot of allegations, he can't seem to differentiate that. And he made, his counsel, prior counsel, made that argument to the Court at the hearing on which the Court ruled.

And while Mr. Hanson says I have to research this and I can't file that, on the 17th he sent a second request for production of documents, despite the Court's ruling, asking for various things including lots of privileged information and on the 18th he filed a motion for contempt. So...

THE COURT: So Mr. Hanson, if they requested discovery for you, I don't know why. I don't know if she did it pro se. I don't know if at that time she was going to challenge the agreement, but at that time you didn't challenge them. So that is not an issue.

Right now you are requesting discovery. Mr. Davis has objected and I've granted that

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objection. I've sustained it actually. So that discovery is not going to be produced. And why it was requested of you, I don't know and he doesn't have to divulge that to me because it's attorney-client privilege. And he's alluding to me that Ms. Hanson did it. Not him.

MR. HANSON: But Your Honor, I informed the Court it was in response to me demanding discovery from her. I said this is a red line for me. I'm not going to walk away from getting some discovery into your finances after the last five years that I've been through. And she responded by sending me 16 pages of interrogatories that she knew that would be in the last thing in the world I would want to do. I like my privacy and I don't like tedious tasks.

THE COURT: Okay. That's not before me today, sir. I have sustained their objection. You will not be getting any further discovery from them that you requested. If you do an additional request, Mr. Davis will have to respond to that. Mr. Davis, I did see that he filed something else. Are you going to respond to that?

MR. DAVIS: Yes, ma'am. I'm going to file another motion.

THE COURT: You file it and then set it in front of me and I will do that. Mr. Hanson, any discovery that you have not already asked for, and I sustained the objection, you are free to ask for and Mr. Davis will either object or provide it. But right now you have two agreements that are in full force and effect. Nobody's asked me to do anything different with them. So I am proceeding with this case, until somebody asks me differently, that those agreements are going to govern how this divorce goes down.

MR. HANSON: Your Honor, I've already said I want to throw out the postmarital agreement and I asked Mr. Davis about that. I said will she withdraw the objections if I'm willing to throw out the postmarital agreement? If I look at the balance sheets --

THE COURT: So what did he say?

MR. HANSON: He said no. She's not willing to do it, but if you look at the balance sheet --

THE COURT: Hold on, Mr. Hanson. So it stays in full force and effect unless you file something otherwise.

MR. HANSON: But Your Honor --

THE COURT: You're a lawyer. You don't just

come to CMCs and make decisions. You have to file the appropriate document, set it for a hearing, and then I will hear it. You have two agreements. They're in place. Nobody's asked me to set them aside. So that is how this divorce is going to go until something is filed.

MR. HANSON: Okay.

THE COURT: We have to follow the law. You know that.

MR. HANSON: Your Honor, I just try to have some level of efficiency and, you know, Ms. Hodz got a hearing in one day that I wasn't available for. I've been trying to get one simple issue in front of the Court for seven months.

THE COURT: What is the issue? What is the issue?

MR. HANSON: The only reason any of this is happening is because Mrs. Hanson never shared any of her financial information while we were married.

THE COURT: No. Stop.

MR. HANSON: Well, you asked me.

THE COURT: What is the issue you want me to hear? Just answer the question.

MR. HANSON: Discovery into Mrs. Hanson's finances for at least as much as I had to give to

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her.

THE COURT: I've already ruled on that. I sustained the objection. You're not getting those finances that you've already requested. If there's additional documents that you want, you can request them and then Mr. Davis can decide if he's going to provide them or set the matter before me. The only way that you would get additional documentation is if the premarital agreement or the separation agreement is set aside.

So if you want to set them aside, you need to file the motion and have a hearing on it. If I did set it aside, you would be entitled to possibly more discovery but you got to go in order.

MR. HANSON: I guess I don't understand the "possibly". Because, you know, I have some protection here. I've been honest every step of the way and, you know, Your Honor, I know you can't know the facts of every case. You have a lot of cases and mine isn't any more important or different, but there's --

THE COURT: Sir, what kind of law do you practice?

MR. HANSON: I was a work comp. defense attorney.

THE COURT: Okay. When did you get out of law school?

MR. HANSON: 2007.

THE COURT: Okay. So a few years. Seven years. I'm still you can remember Contracts 101. When someone enters into a contract, it's legally binding, it's something they decided to do, and the only way it can be thrown out is you need to go research that. It's a very simple contract. I can even tell you the case. C-R-U-P-I is the contract case that governs family law. C-R-U-P-I. Crupi v. Crupi. So if you enter into an agreement, it's legally enforceable and binding unless you come to Court and ask me to set it aside, and you need to go look up what the legal standard is for me to set aside agreements between the parties. So I can't do anything until you do that. Unfortunately, you can't use a divorce to go fishing for personal information from Ms. Hanson when you've entered into an agreement that resolves your divorce.

Now, if you go find the legal standards to how an agreement is set aside and you come in here and you prove that, according to the law, I need to set aside either or both of those agreements, then that changes the whole course of this case and we'll go

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in a different direction. But as we sit here today, there's two binding agreements. You've settled your divorce case and it's ready for final hearing.

I mean I have to follow the law. I'm not trying to be difficult. You settled your case. As we sit here today, this case is done and over and just needs a final hearing. If you believe something went wrong in that agreement at the end, you need to file the appropriate document and do your legal research.

MR. HANSON: Yes, Your Honor.

THE COURT: All right. Anything else, Mr. Davis?

MR. DAVIS: I have things that need to be scheduled. The Court made reference, I believe, to we might possibly address that today. If you prefer I just email your judicial assistant, I'm happy to do that, Your Honor.

THE COURT: What are the issues that you want to set? And Mr. Hanson, I'll give you until Monday morning so you have the weekend. So by Monday morning. Mr. Davis is going to email that order to my JA today. Mr. Davis, please put in there that Mr. Hanson is going to be providing his comments so that my JA gets triggered. Mr. Hanson, you have

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until Monday morning. Nothing fancy. If you decide to do your own order though, please track his order so it goes in the same order and I can see the differences or you free to say in an email I disagree with paragraph 1 because X, Y, Z. I disagree with paragraph 4 because of X, Y, Z. Do an email or draft your own order as long as they follow the same order so I'm not having to go in all different directions. If you're following something and don't like something say I don't like this paragraph, but please follow the same order. So the first paragraph should match. We came for hearing. So just track the same order, please.

MR. HANSON: Your Honor, please forgive me, but if I'm going to file a motion for rehearing, I should still say this is what the order says, work with him on that, and after the order is entered, file a motion got it.

THE COURT: Yes. If an order is not entered, you can file a motion for reconsideration. If it is entered, you file a motion for rehearing.

MR. HANSON: Okay. Do you have a preference on which one I do?

THE COURT: Nope.

MR. HANSON: Okay.

THE COURT: Makes no difference.

MR. DAVIS: Your Honor, the Court asked me what I have to set. It's, No. 1, a motion to compel. No. 2, a motion to appoint Guardian ad Litem. No. 3, motion for psychological evaluation.

THE COURT: We have a child in this case?

MR. DAVIS: Two.

MR. HANSON: Two. That's why I've been trying to rush this through, Your Honor. It's killing me to watch what it's doing to them. It's the only reason I'm so flustered is it's affecting my health and affecting my children. I don't understand all of the delay tactics. I don't know if Your Honor is aware of the fact that Mr. Davis stipulated to have the mandatory disclosures completed by June 28th. He didn't make any effort --

THE COURT: Mr. Hanson, we're not going backwards. You've expressed your complete frustration that this case is not going in the direction. I'm going to make sure it does. I've already told you that. I've seen you twice in the last couple weeks. I'm going to set another hearing. It's going to go forward. There's not going to be any delay tactics. I'm going to tell you I know what lawyers delay and what lawyers

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don't. Mr. Davis is not one of those lawyers that I've ever had a problem with the delay tactics. I'm on top of this case and I don't like that you said I don't care about your case as much as I care about anyone else's. I have roughly --

MR. HANSON: No.

THE COURT: Stop. I can probably tell you any of them that are litigated all of the facts, inside and out, who's on them, and what they do. I'm very, very on top of my cases. You've asked me to be on top of this case. I'm on top of it. I'm going to be on top of it. We're not talking about the past. We're going forward. Mr. Davis.

MR. HANSON: But --

THE COURT: Stop.

MR. HANSON: Your Honor just to clarify, I did not say you cared about my case less. I said my case is no more important than any other case.

THE COURT: Every case is important to me.

MR. HANSON: Your Honor, it wasn't meant as an insult at all. I'm like everybody else.

THE COURT: I didn't take it as an insult. All right. You have a motion for contempt. What's the basis of the motion for contempt, Mr. Davis.

MR. DAVIS: I do not have a motion for

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contempt. It's a motion to compel.

THE COURT: Is it discovery?

MR. DAVIS: It's mandatory disclosures. He filed mandatory disclosure, but it wasn't full and complete.

THE COURT: And you also have a motion for Guardian ad Litem and psychological evaluation?

MR. DAVIS: Yes, ma'am.

THE COURT: Mr. Hanson, are you going to be filing anything? Are you going to be filing a motion for reconsideration, motion for rehearing, or motion to set aside?

MR. HANSON: Yes. I'm going to be filing one of those things related to Ms. Hodz's withdraw and one of those things related to the order on the subpoena. And then on the -- I've already filed a motion for finding of contempt and enforcement on the mandatory disclosure. I've got a motion to compel I have to file that I don't have from Ms. Hodz yet. I'm hoping that the Court -- I've emailed Ms. Hodz's office several times trying to get this. Apparently the prior law firm had drafted one and I want to at least be able to have whatever work they did. So yes, Your Honor. I do have more things to set and I already have a motion for

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contempt and enforcement filed.

THE COURT: Okay. Mr. Hanson, I want to caution you. Before you file a motion for rehearing or reconsideration with respect to Ms. Hodz's withdraw, please do the research on that. I can only think of, on the top of my head, one reason that I can't let her withdraw and that would be that we had a trial pending next week. So I can't force her to stay on a case. So please just do the research before we come back and do that.

You didn't like her. She didn't like working with you. There's no reason to keep you guys on the same case and there's nothing pending. So there's nothing for me to reconsider. I can't force a lawyer to work on a case when there's irreparable differences. That's done and over. So let's go forward.

MR. HANSON: Your Honor, may I explain to you why. It's more because I had one-day notice. I stayed up all night to try to get my rights protected. I didn't know what they were. No one would answer any of my questions. I literally stayed up all night and I got sick for a week because of it. I thought I had reasonable arguments and I don't believe you ever even looked at them.

Did you read my objection?

THE COURT: I just told you. The only thing I can think of that I would have to keep her on the case is if you were set for trial within a week or two. I know the law and that's the only thing I can think of. There might be another thing, but in my 30-plus years of practicing law and being a judge, that's the only thing I know of to be able to not get out of a hearing is if you're set for a trial. And that's still tough for me to force someone to do a trial, but I seen it one time. One time I've seen, and it was when I was a litigator, that the judge forced the lawyer to stay on the case because the trial was set the next week.

MR. HANSON: If you didn't review --

THE COURT: I didn't say I didn't review your stuff.

MR. HANSON: Okay.

THE COURT: I'm just saying that's the only thing. And I have to look at the docket and I looked at the docket and you're not set for trial. I'm going to set this. Mr. Hanson, Mr. Davis, are you available on January 6th at 2:30? It's just going to be for a case management conference.

MR. DAVIS: Yes, Your Honor.

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THE COURT: Mr. Hanson?

MR. HANSON: Just a moment, Your Honor.

THE COURT: No problem. Take your time.

MR. HANSON: And please remind me of the time you mentioned.

THE COURT: No problem. 2:30.

MR. HANSON: I have a gymnastics practice issue.

THE COURT: I can do it at 4:00 also.

MR. HANSON: 4:00. I can get home by then after dropping her off.

THE COURT: Does that work for you, Mr. Davis?

MR. DAVIS: Yes, ma'am.

THE COURT: Will you be able to have all of your motions filed by December 31st? Two weeks.

MR. HANSON: I would hope so. Your Honor, I'm dealing with the flood insurance company. It's taking up a lot of my time.

THE COURT: Mr. Hanson, it's completely up to you.

MR. HANSON: I would like a little more time.

THE COURT: You're the one that wants me to fast track this case. So it's up to you. What date will you have all of your motions filed by?

MR. DAVIS: He finds time to send me multiple

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emails a day these days.

MR. HANSON: I wish you would respond to them and answer the questions in them, sir.

THE COURT: Mr. Hanson, how long do you need to file all the motions you want to file?

MR. HANSON: How about -- can I have until the January 6th date?

THE COURT: You can have whatever you'd like. You want January 6th?

MR. HANSON: Yep.

THE COURT: So on January 6th every motion you want me to hear in the near future is going to be filed?

MR. HANSON: Yes, Your Honor. If I get it filed earlier --

THE COURT: No. That's fine, but now I'm going to set a hearing at a different date. Now I'm going to set you for a hearing on the 21st of January. I have the afternoon available.

MR. DAVIS: I'd ask it to be as late as possible. Definitely after -- I'd say after 4:00. One of my kids has a field trip that day. Special needs child. I have to chaperone. It's not even a want to. It's either mom or I have to go.

THE COURT: Okay. I can do 4:30.

MR. DAVIS: That's fine. Thank you.

THE COURT: Does that work for you, Mr. Hanson, with your kids' schedule?

MR. HANSON: I'm sorry. Just getting to 1/21.

THE COURT: 1/21 at 4:30.

MR. HANSON: Yes. I can do that.

THE COURT: 1/21 at 4:30. We're going to be hearing Mr. Davis's motion he just mentioned. Mr. Hanson, you have the ability to file whatever you need to file by January 6th, if you want to file your objections or anything. And then all motions that are pending on the 6th will be noticed for the 21st at 4:30 via Zoom unless they're not appropriate.

MR. HANSON: Your Honor, you mentioned it's going to be a status conference.

THE COURT: I did say status conference.

MR. DAVIS: I don't know that we'll get all that done.

THE COURT: We'll have a status conference. I did say that. I need to make sure they're set together. Thank you, Mr. Hanson. We'll have a status conference. So everyone would have had time to review the motions and we'll decide how we're going to set all the motions.

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And Mr. Hanson, I'm not trying to be difficult with you on the Hodz thing. I'm just trying to direct your energy to the relief that you need. Okay. I know you want some relief. Let's focus on that and not on things --

MR. HANSON: Your Honor, it's no disrespect to you. I just want to make sure I retain any appellate issues that may come up. Because this is an issue that I will not stop pursuing and I want to make sure I have all my bases covered in an area that I don't understand that well.

THE COURT: All right. So if you want to appeal my ruling with respect to Mrs. Hodz's' withdraw, you do have to do a motion for rehearing because they won't take it.

MR. HANSON: I'm not suggesting that I want to appeal that issue. I'm just saying -- in what I did you had to preserve issues for appeal and I don't know if it's the same in family law. I hope that makes sense.

THE COURT: It's my understanding -- and I'm not an appellate judge. It's my understanding, before you can appeal, you do have to do a motion for rehearing. That's what I've seen. I don't know if you can do a motion for reconsideration. I know

that you are required to do a motion for rehearing.

MR. HANSON: Great.

THE COURT: So we'll get that order done and if you want to do that, we'll discuss that again. Anything that's been filed as of January 6th will be up for debate on the CMC on 1/21 at 4:30 and we'll get everything scheduled.

MR. HANSON: Your Honor, the motion for contempt and enforcement, does that have any sort of a fast-track option or is that just like any other motion?

THE COURT: Nope. I'm going to do it all together. I'll find you some expedited time. I have little pockets of time I hide for situations like this. I will get you some time after that 21st.

MR. HANSON: Your Honor, the order was October 28th and they had 10 days to do it. And, you know, I'm sorry, Your Honor.

THE COURT: They've got issues with you on the same subject matter. So we need to hear it all together and clear it all up.

MR. HANSON: They never followed up with that until just recently. No one ever cared about it. That's a problem I have too. I had a lot of records

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mailed to me and I never went to either attorneys' office to drop them off for scanning. And then I had Helene come in and flood my house. I don't know where the records are. I had them mailed to me. I'll do my best to find them. I told Mr. Davis he can subpoena whatever he wants. You know, again, I'll look for the records and I guess I'll have to go through requesting them again if I can't find them.

THE COURT: Mr. Davis, if I've got any motions for contempt, motions to produce, motions to compel, you guys can look at them and try to resolve them and send the documents over and then they'll become moot. So you're free to try to get each other what you want to eliminate any of these motions being heard. Okay.

MR. HANSON: Yes, Your Honor.

THE COURT: I hope everyone has a nice holiday and see everyone on the 21st of January.

MR. DAVIS: You, too. Have a nice holiday. Take care.

THE COURT: You, too. Bye-bye.

(The court proceeding concluded at 1:05 p.m.)

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REPORTER'S CERTIFICATE

STATE OF FLORIDA

COUNTY OF HILLSBOROUGH

I, NIKA M. PRIESTLEY, certify that I was authorized to and did stenographically report the foregoing court proceeding and that the transcript is a true and complete record of my stenographic notes.

I further certify that I am not a relative, employee, attorney, or counsel of any of the parties, nor am I a relative or employee of any of the parties' attorney or counsel connected with the action, nor am I financially interested in the action.

DATED this 26th day of December, 2024



_____
NIKA M. PRIESTLEY
Stenograph Shorthand Reporter
Notary Public, State of Florida
Commission No.: HH476019
Expires: April 22, 2028

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